Showing contexts for: **PWDVA** in Bimbisar Baburao Gaikwad vs Diksha Wo Bimbisar Gaikwad @ Diksha D/O ... on 15 January, 2025

Context size: Small | Current | Large | Larger

1. Rule. Rule made returnable forthwith. With consent of both the sides, it is heard finally at the stage of admission.

2. The Petitioner/husband has invoked the jurisdiction of this Court under Article 227 of the Constitution of India and takes exception to the Judgment and Order dated 27th September 2023 passed by the learned Additional Sessions Judge, Aurangabad, in **PWDVA** Appeal No.12 of 2023, thereby affirmed the order dated 2 nd January 2023 passed below Exhibit-4 in **PWDVA** Application No.32 of 2022 passed by learned Judicial Magistrate, First Class, Court No.9, Aurangabad, wherein interim maintenance of Tauseef (2) 921-WP.117.2024-J Rs.15,000/- per month was granted in favour of the Respondent-wife under the Protection of Women from Domestic Violence Act, 2005.

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3. Having regard to the submissions canvassed on behalf of both the sides, I have gone through the petition paper book. It is an admitted fact that both the Petitioner and Respondent are divorcee. They performed second marriage on 2nd July 2021, as per custom and rights prevailing in their society. The Respondent-wife filed **PWDVA** Application No.32 of 2022 an application under Section 12 of the Domestic Violence Act alleging that, after marriage, she cohabited with Petitioner/husband at Wagholi, Pune. She was treated well for a few days, however, subsequently, domestic violence was raised against her at the hands of the Petitioner under state of consumption of

drugs. She further alleged that, her husband-Petitioner assaulted, abused her and issued life threat. The Petitioner/husband was having extra marital affair.

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4. The Respondent-wife also filed an application for interim maintenance. On 2nd January 2023, the learned Judicial Magistrate First Class, Court No.9, Aurangabad passed an order and directed the Petitioner to pay Rs.15,000/- towards interim maintenance to the Respondent-wife from the date of application i.e. from 12th January 2022 during the pendency of main application.

5. Being aggrieved by said order, the Petitioner-husband filed **PWDVA** Appeal No.12 of 2023 under Section 29 of the Domestic Violence Act. On 27 th September 2023, the learned First Appellate Court passed the impugned order and dismissed the appeal of the Petitioner.

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8. In the case in hand, the Petitioner is drawing monthly salary of 1 (2017) 14 SCC 200 2 (1970) 3 SCC 129 Tauseef (4) 921-WP.117.2024-J Rs.50,000/- and if 25% maintenance is considered, then it would come to Rs.12,500/-. However, in the case in hand, the learned trial court granted interim maintenance or Rs.15,000/- per month which was affirmed by the learned Appellate Court, without considering the law laid down in case of Kalyan Dey Chowdhury. Therefore, it prima facie appears to be exorbitant and excessive of 25%. In view of above discussion, impugned judgment and order passed by the learned Additional Sessions Judge, Aurangabad affirming the order dated 2nd January 2023 passed below Exhibit-4 in **PWDVA** Application No.32 of 2022 is hereby modified to the extent of quantum of maintenance. The Respondent-wife is hereby held entitled to receive amount of Rs.12,500/- per month

towards interim maintenance during the pendency of main application i.e. **PWDVA** Application No.32 of 2022. Accordingly, the petition is partly allowed.